

EXHIBIT M

Hearing Tr. Feb. 18, 2025, excerpts

Case No.: CGC-21-594102

Superior Court of California, County of San Francisco

CITATION EXHIBIT ORIGIN:

Source: Hearing Tr. Feb 18, 2025

1 So can you tell me why they're here? I assume
2 they're Mr. Rosario's --

3 MR. JESSUP: Former counsel.

4 THE COURT: -- former counsel, and they're here
5 on the basis of some subpoena that you issued?

6 MR. ROSARIO: Yes, Your Honor. You had
7 mentioned that the providence of the 911 transcript CDs
8 that were not passed to the defense, that you wanted me
9 to prove to you where those were to be able to provide
10 those. We had 911 emergency services send those to you
11 and Dolan had a copy since 2021.

12 THE COURT: Okay.

13 MR. ROSARIO: So they are here to testify on
14 that and provide those documents.

15 THE COURT: All right.

16 Counsel, do you have the -- I think it's the
17 compact disc or recording that Mr. Rosario referenced?

18 MR. JESSUP: Your Honor, are you talking about
19 the -- well, there's a bunch of things. We have, and
20 was produced to defense counsel, body cam footage, about
21 five videos, as well as the 911 audio, as well as the
22 CAD log. In addition --

23 THE COURT: Okay. Sorry. I'm trying to take
24 this down.

25 A body cam and what else did you provide?

1 MR. JESSUP: The 911 audio calls.

2 THE COURT: What else?

3 MR. JESSUP: And the CAD report. The CAD,
4 C-A-D, report.

5 THE COURT: Right.

6 MR. JESSUP: Along with various other
7 documents.

8 THE COURT: Okay.

9 MR. JESSUP: In addition, Your Honor, these
10 documents were identified in discovery, and last
11 February -- I have a copy of the Compaq subpoena issued
12 by defense to San Francisco Police Department requesting
13 all of this data.

14 THE COURT: Defense issued a subpoena?

15 MR. JESSUP: Correct. Now -- sorry, Your
16 Honor.

17 THE COURT: Go ahead.

18 MR. JESSUP: Prior to current defense counsel's
19 involvement, there was other -- another firm involved on
20 behalf of the defense. All of that -- those items were
21 served on them in the production for discovery as well
22 at Mr. Rosario's deposition, in addition, utilized in
23 the deposition of defendants. Whether or not prior
24 counsel gave that to current counsel, I don't know.

25 THE COURT: Okay.

1 MR. JESSUP: Thank you.

2 THE COURT: All right. Ms. Navaratnasingham.

3 MS. NAVARATNASINGHAM: Yes, Your Honor.

4 So this is news to me. We didn't realize that
5 prior to handling counsel may have received it, and I
6 can't confirm whether that was produced. I take
7 counsel's word, of course, but we -- I can represent to
8 you that our office did not receive the 911 call until
9 the day of the MSC -- the day before the MSC and that
10 was an attachment link. There was no sort of ability to
11 verify whether that was accurate or not.

12 And we were not present -- our office was not
13 on the case when Mr. Rosario's deposition was taken
14 either.

15 THE COURT: I see. Okay.

16 I think there are certain copies of some
17 materials that have been submitted by Mr. Rosario. I
18 think we did get a copy of a reply from someone with the
19 custodian of records for -- it may have been the fire
20 department. Am I correct?

21 You issued a subpoena, Mr. Rosario, for some
22 documents, and they said they no longer have them. I
23 think that was the response.

24 MR. ROSARIO: We were concerned, Your Honor --

25 THE COURT: No. I'm just asking you whether --

1 MR. JESSUP: Absolutely. Well, what I'll do
2 is, I will direct my office to -- they'll be a link
3 because they're so big, and it'll be the -- I just want
4 to make sure we get it right -- all the body cam
5 footage, the 911 call, as well as the CAD report. We
6 can send to counsel, as well as plaintiff, a link that
7 they can access.

8 THE COURT: Does that work?

9 MS. NAVARATNASINGHAM: That's acceptable, yes,
10 Your Honor.

11 THE COURT: Okay. Look, unless there's some
12 issue with regard to the reliability and validity of
13 these documents, the only issue that would remain is
14 whether they are, in fact, logically relevant and
15 legally relevant in the courtroom.

16 So I would like to release counsel this
17 morning, from the Dolan firm, given their
18 representations that they're going to provide that
19 material.

20 How soon do you think you can get to it?

21 MR. JESSUP: As soon as I get back to the
22 office, I can probably get it out within 20 minutes or
23 10 minutes.

24 THE COURT: Okay. Very good.

25 So we'll have that done today, given counsel's

1 All right. Thank you for coming in, sir.

2 MR. JESSUP: Your Honor, would you like me to
3 send or include the clerk on the e-mail to counsel?

4 THE COURT: No. I don't think that that's
5 required yet. It's an issue about admissibility.
6 They'll have to be printed out at some point for
7 purposes of keeping a good record. We don't digitally
8 retain evidence, as far as I understand, in this Court.
9 We don't digitally retain it. Goodness, I think we
10 would have warehouses to store the electronic evidence
11 as well.

12 So, in any event, I appreciate you making that
13 available, and what we'll do is, we'll just wait until
14 all the parties have the materials so we can take a look
15 at whether these documents are, in fact, admissible.

16 MR. JESSUP: Absolutely, Your Honor. I will
17 get right on it so not to delay the Court any further.

18 But I did see madam court reporter had her hand
19 up. Before I leave --

20 Yes, ma'am?

21 THE REPORTER: I need your cards, please.

22 MR. JESSUP: May I approach, Your Honor?

23 THE COURT: Yes, sir.

24 MR. JESSUP: Thank you.

25 THE COURT: Thank you for coming in this

1 MR. ROSARIO: There's more than that, Your
2 Honor.

3 THE COURT: Go ahead. Tell me what's more
4 here, but I'm just pointing that out.

5 MR. ROSARIO: Okay. We wanted to depose the
6 witness as well as depose some of the police officers
7 who were at the scene. I have not been able to be given
8 that chance since I took over the case, and there's
9 severe prejudice to me, because there's questions that
10 need to be asked of the police officers that were not
11 asked and that are relevant, absolutely relevant to the
12 police officer's body cam. There's a lack of
13 information that was not disclosed in there.

14 Those depositions are going to be absolutely
15 critical for me to move forward and be able to try this
16 case. I was denied that opportunity because the
17 information was completely concealed from me.

18 I never received any access to any of the
19 videos or 911 tapes before the moment they had sent me a
20 hyperlink to download it, and it took me quite a while,
21 Your Honor, to go through thousands of files, and they
22 were buried very deeply. And I didn't even know that
23 there was even 911 or body cam videos until they were
24 pulled up, and I believe it was in December, and we were
25 already like days away from the MSC conference, and I

1 you cured Mr. Rosario's concern. There's no prejudice
2 here.

3 I have -- I'm going to get the links presumably
4 today for the 911 call, and so I believe this Court has
5 already cured that concern and there is no prejudice to
6 Mr. Rosario on that end.

7 We also reviewed the deposition transcript.
8 Again, we were not counsel when Mr. Rosario was deposed,
9 but we reviewed the deposition transcript very quickly,
10 Your Honor, and there were no exhibits attached to the
11 deposition transcript.

12 The only reference to a 911 call is Mr. Rosario
13 testifying that the police arrived after 911 was called
14 by my client.

15 During the deposition, it appears that
16 Mr. Rosario produced some photographs and pay stubs.
17 That's the extent of that.

18 The responding officer has been deposed, Your
19 Honor, by Mr. Dolan's office -- or excuse me -- yes,
20 Mr. Dolan's office. The officer who prepared the
21 traffic collision report has been deposed. Mr. Dolan
22 was present at that deposition. Again, the exhibits to
23 that deposition were the traffic collision report and
24 some -- a photograph of the scene.

25 The traffic collision report, which we also

1 is denied.

2 An in propia persona litigant is held to the
3 same rules of procedure as an attorney. The case is
4 entitled Burnete, B-U-R-N-E-T-E, versus La Casa Dana,
5 D-A-N-A, Apartments, a 2007 decision, 148 Cal.App.4th,
6 1262, for the pincite of 1267. Further,
7 self-represented litigants are held to the same
8 standards as attorneys and must comply with the rules of
9 civil procedure.

10 Kobayashi, K-O-B-A-Y-A-S-H-I, versus Superior
11 Court, 2009 decision, 175 Cal.App.4th 536-543.

12 And finally, "A doctrine generally requiring or
13 permitting exceptional treatment of parties who
14 represent themselves would lead to a quagmire in the
15 trial courts. It would be unfair to the other parties
16 to litigation." And that is a quote from Rappleyea,
17 R-A-P-P-L-E-Y-E-A, versus Campbell, 1994 decision
18 8 Cal.4th 975 with a pincite of 984-985.

19 The Court does not find in this instance that
20 there's sufficient grounds to grant a continuance.

21 The Court does not find that surprise under 473
22 of the CCP is a sufficient basis, given the facts that
23 have been discussed this morning with respect to the
24 basis for a continuance.

25 Again, on those two requests the motion to